

Court No. - 35

Case :- WRIT - C No. - 68283 of 2006

Petitioner :- Shri Mahavir Rolling Mills

Respondent :- State Of U.P.And Others

Petitioner Counsel :- G.P. Srivastava,Saurabh Srivastava,Shashi Nandan

Respondent Counsel :- C.S.C.,H.P.Dubey,Mridul Tripathi,Ranjit Saxena,Sarvesh Srivastava

Hon'ble Sheo Kumar Singh,J.

Hon'ble Ashok Srivastava,J.

Order Date :- 4.8.2009

On account of illness slip of the learned counsel for the petitioner, list this case in the next Cause List.

4.8.2009.

S.K.S.

68283/2006

Court No. - 34

Case :- WRIT - C No. - 68283 of 2006

Petitioner :- Shri Mahavir Rolling Mills

Respondent :- State Of U.P.And Others

Petitioner Counsel :- G.P. Srivastava,Saurabh Srivastava,Shashi Nandan

Respondent Counsel :- C.S.C.,H.P.Dubey,Mridul Tripathi,Ranjit Saxena,Sarvesh Srivastava

Hon'ble Prakash Chandra Verma,J.

Hon'ble S.C. Agarwal,J.

The case is passed over for the day on the request of learned counsel for the petitioner.

List this case in the next cause list.

Order Date :- 23.10.2009

RKS/

Court No. - 34

Case :- WRIT - C No. - 68283 of 2006

Petitioner :- Shri Mahavir Rolling Mills

Respondent :- State Of U.P.And Others

Petitioner Counsel :- G.P. Srivastava,Saurabh Srivastava,Shashi Nandan

Respondent Counsel :- C.S.C.,H.P.Dubey,Mridul Tripathi,Ranjit Saxena,Sarvesh Srivastava

Hon'ble Prakash Chandra Verma,J.

Hon'ble S.C. Agarwal,J.

Put up on Tuesday i.e. 17.11.2009.

Order Date :- 12.11.2009

KU

Court No. - 34

Case :- WRIT - C No. - 68283 of 2006

Petitioner :- Shri Mahavir Rolling Mills

Respondent :- State Of U.P.And Others

Petitioner Counsel :- G.P. Srivastava,Saurabh Srivastava,Shashi Nandan

Respondent Counsel :- C.S.C.,H.P.Dubey,Mridul Tripathi,Ranjit Saxena,Sarvesh Srivastava

Hon'ble Prakash Chandra Verma,J.

Hon'ble S.C. Agarwal,J.

By means of the instant writ petition, petitioner seeks to challenge the order dated 7.12.2006 passed by the Assessing Officer relating to Electricity dues.

The main ground of challenge is that the procedure as contemplated under Rule 6.8 of The UP Electricity Supply Code, 2005 was not followed and opportunity of personal hearing was not given to the petitioner before passing the order of assessment impugned in the instant writ petition.

Perusal of counter affidavit transpires that the procedure has been followed to some extent but it is not disputed that before passing of the assessment order petitioner was not given opportunity of personal hearing, therefore, the order being violative of Rule 6.8 of the UP Electricity Supply Code, 2005 cannot be sustained. Accordingly the order dated 7.12.2006 is hereby set aside.

The writ petition is allowed. The Assessing Authority is directed to re-assess the Electricity dues in accordance with the provisions of Rule 6.8 of the UP Electricity Supply Code, 2005 and shall pass the assessment order after giving an opportunity of hearing to the petitioner within a period of one month from the date of production of certified copy of this order.

Order Date :- 17.11.2009

RKS/